

1 ENGROSSED HOUSE
2 BILL NO. 3130

By: West (Kevin), Olsen,
Woolley, Adams, Crosswhite
Hader, and Maynard of the
House

4 and

5 Bullard of the Senate

6
7
8 An Act relating to gender transition procedures;
9 amending Section 1, Chapter 150, O.S.L. 2023 (63 O.S.
10 Supp. 2025, Section 2607.1), which relates to health
11 services for minors; clarifying definition; providing
12 definition; including referrals and aiding and
13 abetting; providing for no limitation on punitive
14 damages; exempting immunity protection for employees
15 in certain actions; providing for codification; and
16 declaring an emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. AMENDATORY Section 1, Chapter 150, O.S.L.
19 2023 (63 O.S. Supp. 2025, Section 2607.1), is amended to read as
20 follows:

21 Section 2607.1. A. As used in this section:

22 1. "Child" or "minor" means any person under eighteen (18)
23 years of age;

24 2. a. "Gender transition procedures" means the following
medical or surgical services performed for the purpose
of attempting to affirm the minor's perception of his

1 or her gender or biological sex, if that perception is
2 inconsistent with the minor's biological sex:

3 (1) surgical procedures that alter or remove physical
4 or anatomical characteristics or features that
5 are typical for the individual's biological sex,
6 including, but not limited to, genital or chest
7 surgeries, or

8 (2) puberty-blocking drugs, cross-sex hormones, or
9 other drugs to suppress or delay normal puberty
10 or to promote the development of feminizing or
11 masculinizing features consistent with the
12 opposite biological sex.

13 b. Gender transition procedures do not include:

14 (1) ~~behavioral health care services or mental health~~
15 ~~counseling,~~

16 ~~(2)~~ medications to treat depression and anxiety,

17 ~~(3)~~

18 (2) medications prescribed, dispensed, or
19 administered specifically for the purpose of
20 treating precocious puberty or delayed puberty in
21 that patient,

22 ~~(4)~~

23 (3) services provided to individuals born with
24 ambiguous genitalia, incomplete genitalia, or

1 both male and female anatomy, or biochemically
2 verifiable disorder of sex development (DSD),
3 including but not limited to:

- 4 (a) 46,XX DSD,
- 5 (b) 46,XY DSD,
- 6 (c) sex chromosomes DSDs,
- 7 (d) XX or XY sex reversal, and
- 8 (e) ovotesticular disorder,

9 ~~(5)~~

10 (4) the treatment of any infection, injury, disease,
11 or disorder that has been caused by or
12 exacerbated by the performance of gender
13 transition procedures, whether or not the gender
14 transition procedure was performed in accordance
15 with state and federal law,

16 ~~(6)~~

17 (5) the treatment of any physical injury or illness
18 that would, as certified by a physician, place
19 the individual in imminent danger of death or
20 impairment of a major bodily function unless such
21 treatment is performed, or

22 ~~(7)~~

23 (6) the provision of puberty-blocking drugs or cross-
24 sex hormones to a minor currently receiving such

1 drugs or hormones as of ~~the effective date of~~
2 ~~this act~~ May 1, 2023, for a period of not more
3 than six (6) months solely for the purpose of
4 assisting the minor with gradually decreasing and
5 discontinuing use of the drugs or hormones;i

6 3. "Health care provider" means a physician, physician
7 assistant, Advanced Practice Registered Nurse, psychologist,
8 counselor, therapist, social worker, behavioral health practitioner,
9 or any other person who is licensed, certified, or otherwise
10 authorized by the laws of this state to administer health care in
11 the ordinary course of the practice of his or her profession; and

12 4. "State funds" includes funds appropriated by the Legislature
13 or derived from any Oklahoma government agency or political
14 subdivision.

15 B. A health care provider shall not knowingly ~~provide~~ perform,
16 attempt to perform, or refer a child for a gender transition
17 procedures to any child procedure.

18 C. No person shall knowingly aid or abet the performance or
19 referral of a gender transition procedure on a child.

20 D. A health care provider found in violation of subsection B of
21 this section shall, upon an adverse ruling by the provider's
22 respective licensing board, be guilty of unprofessional conduct.
23 Disciplinary proceedings against the health care provider may be
24 commenced at any time after the commission of such offense.

1 ~~D.~~ E. A health care provider who violates subsection B of this
2 section shall, upon conviction, be guilty of a felony. Prosecution
3 for a criminal violation of subsection B of this section shall be
4 commenced not later than the date on which the child attains the age
5 of forty-five (45) years.

6 ~~E.~~ F. 1. The parent, legal guardian, or next friend of a child
7 to whom a health care provider has provided one or more gender
8 transition procedures in violation of subsection B of this section
9 may bring a civil action against the health care provider. The
10 parent, legal guardian, or next friend shall bring a claim for the
11 violation no later than the date on which the child attains the age
12 of majority.

13 2. A child to whom a health care provider has provided one or
14 more gender transition procedures may bring an action throughout his
15 or her minority through a parent, legal guardian, or next friend,
16 and may bring an action in his or her own name upon reaching
17 majority at any time until the date on which the child attains the
18 age of forty-five (45) years.

19 3. The court in such action may award compensatory damages,
20 punitive damages, injunctive relief, or any other appropriate
21 relief. A plaintiff may be awarded punitive damages in any amount
22 the jury deems appropriate in an action against a defendant who has
23 violated this act. Additionally, the court shall award court costs
24

1 and reasonable attorney fees to a prevailing party who establishes a
2 violation of this section.

3 4. Notwithstanding any other provision of law, an action under
4 this subsection may be commenced, and relief may be granted, in a
5 judicial proceeding without regard to whether the person commencing
6 the action has sought or exhausted available administrative
7 remedies.

8 ~~F.~~ G. The Attorney General may bring an action to enforce
9 compliance with this act. Nothing in this act shall be construed to
10 deny, impair, or otherwise affect any right or authority of the
11 Attorney General, the state, or an agency, officer, or employee of
12 the state to institute or intervene in any action or proceeding.

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 173 of Title 51, unless there is
15 created a duplication in numbering, reads as follows:

16 Employees who violate Section 2607.1 of Title 63 of the Oklahoma
17 Statutes are exempt from the immunity protections of The
18 Governmental Tort Claims Act.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.
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1 Passed the House of Representatives the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the ____ day of _____, 2026.

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8 _____
9 Presiding Officer of the Senate